

24STCV16620 24STCV16620

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV16620

LAURA

POLTE-HORNSTEIN v. VAN FREIGHT LINES CORPORATION

June

23, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT KING MEAT

SERVICE, INC.'S MOTION TO COMPEL VAN FREIGHT LINE'S CORPORATION'S RESPONSE TO

FORM INTERROGATORIES, SET NO. ONE. DEFENDANT KING MEAT SERVICE, INC.'S MOTION

TO COMPEL VAN FREIGHT LINE'S CORPORATION'S RESPONSE TO SPECIAL INTERROGATORIES,

SET NO. ONE. DEFENDANT KING MEAT

SERVICE, INC.'S MOTION TO COMPEL VAN FREIGHT LINE'S CORPORATION'S RESPONSE TO

REQUEST FOR PRODUCTION, SET NO. ONE.

RULING:

All three Motions are ordered

off calendar, considering recent responses served.

I.

BACKGROUND

The Court incorporates by

reference the Background section of the Minutes entered on July 15, 2025.

On January 12, 2026, Defendant,

Cross-Defendant, and Cross-Complainant KING MEAT

SERVICE, INC. (Cross-Complainant) filed Motions for an Order compelling Defendant

and Cross-Defendant VAN FREIGHT LINES CORPORATION (Cross-Defendant) to serve

verified responses without objections to (1) Form Interrogatories, (2) Special Interrogatories, and (3) Requests for Production. Additionally, Cross-Complainant requests sanctions against Cross-Defendant in the amount of \$3,780.00 as to each Motion.

Cross-Defendant advocates

denying, arguing that the responses have been served, and delays are explained by insured principal hospitalization, a missing entity owner, and insurer intervention.

II.

LEGAL STANDARD

A motion to compel initial discovery responses need only show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906; Code Civ. Proc., §§ 2030.290 [compelling initial interrogatory responses], 2031.300 [compelling initial document requests].)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and

fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58

Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden

of proof, the burden shifts to the opposing party attempting to avoid a

monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200

Cal.App.4th 1424, 1435.) Courts may determine substantial justification based

on the “whole picture” of the discovery dispute, including where parties

partially prevailed as to some discovery items in dispute, or where discovery

concessions occurred only after improperly asserted objections. (In re

Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.) Where satisfactory

responses have been served after the filing of motions to compel, courts

nonetheless may award sanctions. (Sinaiko

Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148

Cal.App.4th 390, 409 (Sinaiko).) The failure of clients to serve

responses, due to their failure to keep counsel informed of their whereabouts,

may be found to be a willful failure of the client to comply with discovery

requirements. (Steven M. Garber &

Associates v. Eskandarian (2007) 150 Cal.App.4th 813, 821; Cornwall v. Santa Monica Dairy (1977) 66

Cal.App.3d 250, 253.)

III.

ANALYSIS

Cross-Complainant states

that it has been since September 19, 2025, that the subject discovery requests were served, yet Cross-Defendant has still not responded, after agreeing to respond during meeting and conferring.

The Opposition reports service

of the initial responses on June 8, 2026, and justifications for delays, including time for counsel's and an investigator's searching, in April and ongoing, for a missing insured owner of the entity having a principal who is indefinitely hospitalized and unable to participate in discovery, and the intervention of the insurer in this action on October 16, 2025.

Where respondents served

untimely discovery responses after parties have filed motions to compel initial responses, courts have broad discretion as to ruling, including: 1) denying the motion as moot, in whole or part, where valid responses without objections have resolved the motion; 2) awarding requested sanctions; 3) allowing moving party to take the motion off calendar; 4) considering the motion as voluntarily narrowed in scope; 5) compelling responses without objection, where no legally valid responses have been provided, as to some, or all, interrogatories; 6) treating the motion as one to compel further responses, and ruling accordingly, with, or without, a separate statement; 7) ordering the parties to meet and

confer; 8) ordering moving party to file a separate statement; or, 9) ordering the motion off calendar while requiring the propounding party to file a motion to compel further responses. (Sinaiko, supra, 148 Cal.App.4th at p. 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko regarding court considering supplemental responses served after motion].) Under some circumstances, it may be an abuse of discretion for a court to treat a motion as being one to compel further responses without requiring a separate motion. (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 778.)

“[T]o preserve its right of subrogation, the insurance company must ... interplead itself into any action brought by the insured against the third party tortfeasor,…” (Progressive West Ins. Co. v. Superior Court (2005) 135 Cal.App.4th 263, 273.)

Here, the Oppositions

show that the sought responses have been served. As for sanctions, they support the finding of substantial justification, based upon an insurer intervening under difficult circumstances of a missing insured.

IV.

CONCLUSION

Accordingly, the Court orders

the Motions off calendar, including sanctions requests.